

STATE OF NEW YORK

3283--C

2025-2026 Regular Sessions

IN ASSEMBLY

January 27, 2025

Introduced by M. of A. BORES -- read once and referred to the Committee on Health -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- recommitted to the Committee on Health in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- again reported from said committee with amendments, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the public health law, in relation to the operation of gene synthesis providers and manufacturers of gene synthesis equipment

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Short title. This act shall be known and may be cited as
2 the "bioterrorism prevention act".

3 § 2. The public health law is amended by adding a new article 32-B to
4 read as follows:

ARTICLE 32-B

GENE SYNTHESIS LABS

7 Section 3230. Operation of gene synthesis providers and manufacturers of
8 gene synthesis equipment.

9 § 3230. Operation of gene synthesis providers and manufacturers of
10 gene synthesis equipment. Any gene synthesis provider or manufacturer
11 of laboratory equipment intended for use by a gene synthesis provider
12 shall operate in accordance with rules and regulations issued by the
13 department, including regulations on identifying potentially dangerous
14 genetic sequences, screening potential customers and retaining records
15 of genes synthesized and/or delivered. The department shall utilize
16 generally accepted industry standards and take into consideration recom-
17 mendations and protocols set by the international gene synthesis consor-
18 tium and/or other similar nationally or internationally recognized rele-
19 vant organizations to draft such rules and regulations. For the purpose

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

LBD04229-06-6

1 of this section, "gene synthesis provider" shall mean any entity that
2 synthesizes and distributes synthetic nucleic acids to a customer or to
3 a distributor.
4 § 3. This act shall take effect on the ninetieth day after it shall
5 have become a law.